structure of the Constitution. In fact, in the Kesavananda case itself, an ouster clause in Article 31C of the Constitution (as it then was), which restricted the court from even *considering* whether a law was enacted to give effect to certain directive principles when the legislature simply *asserted* that it had this effect, was struck down. And so it was with the amendment to Article 368 which attempted to eliminate any inquiry into the validity of constitutional amendments. For Justice Chandrachud, this amendment deprived citizens of 'one of the most valuable modes of redress' under the Constitution – the right to petition the Supreme Court in respect of a violation of fundamental rights.

Justice Chandrachud struck down the amendments to Article 31C of the Constitution in equally emphatic terms. The primary reason for this aspect of the court's judgement was that it disturbed the balance between fundamental rights and directive principles. Just as the fundamental rights would be without a 'radar and a compass' without the directive principles, the directive principles would be a 'pretence for tyranny' if they came at the cost of fundamental rights. On a practical level, the court apprehended that Parliament could use Article 31C as a conduit to protect a large number of laws from full judicial scrutiny.

The opinion concluded with the following passage:

> Three Articles of our Constitution, and only three, stand between the heaven of freedom into which Tagore wanted his country to awake and the abyss of unrestrained power. They are Articles 14, 19 and 21. Article 31C has removed two sides of that golden triangle which affords to the people of this country an assurance that the promise held forth by the Preamble will be performed by ushering an egalitarian era through the discipline of fundamental rights, that is, without emasculation of the rights to liberty and equality.[24]

This majority opinion especially provoked debate since Justice Chandrachud had, in an opinion from seven years earlier in the Kesavananda case, rejected the very same basic structure doctrine which he now cited favourably to strike down constitutional amendments. While some criticized Justice Chandrachud for his 'rhetoric on sanctity of fundamental rights [in the Minerva Mills judgement]' soon after his